

TENTATIVE RULING(S) FOR May 15, 2026

Department S14 – Judge Winston Keh

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If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2508090

Conrad vs. GM

TENTATIVE RULING(S):

This lemon law case settled on December 2025, but the parties were unable to resolve the attorneys' fees and costs issues. The Court now addresses the merits of Plaintiff's motion for attorneys' fees and costs. The parties have fully briefed the issues, and the Court has considered all the submitted papers relating to Plaintiff's motion.

I. Analysis

In the current action, the parties agree that Plaintiff is entitled to attorney fees but dispute the amount. Plaintiff seeks \$23,161.53, consisting of \$14,665.00 in claimed attorneys' fees, a requested 0.5 multiplier enhancement of \$7,332.50, and \$1,164.03 in costs.

a. Attorneys' Fees.

i. Plaintiff's Counsels' Hourly Rates Should be Reduced.

Sepehr Daghighian, partner for the representing firm California Consumer Attorneys, P.C., submits the hourly rates of all the billers who worked on the matter as follows:

<i>Name</i>	<i>Position</i>	<i>Year of Bar Admission</i>	<i>2025/2026 Hourly Rate</i>	<i>Hours Worked</i>
Sepehr Daghighian	<i>Partner</i>	2005	\$625	12.6
Michael H. Rosenstein	<i>Partner</i>	1993	\$700	2.5
Brian T. Shippen-Murray	<i>Senior Associate</i>	2012	\$550	2.6
Alastair Frederick Hamblin	<i>Attorney</i>	2012	\$550	5.8
Miguel A. Ortiz	<i>Associate</i>	2017	\$525	0.8

(S. Daghighian Decl. ¶¶7-11, Ex. A.)

GM argues that Plaintiff's counsels' rates are inflated and should be reduced. A review of court decisions has found that the hourly rates proposed by Plaintiff are higher than the range other judges have found reasonable in other similar Song-Beverly fee motions. (See, e.g., *Hamm v. FCA US LLC* (S.D. Cal. Aug. 16, 2019), No. 3:17-cv-0577-AJB-BGS, 2019 U.S. Dist. LEXIS 141480, at *8-9 (finding rates of \$350-\$550/hour to be reasonable); (*Petropoulos v. FCA US LLC* (S.D. Cal. May 29, 2019), No. 17-CV-0398 W (KSC), 2019 U.S. Dist. LEXIS 89984, at *5-6 (finding rates of \$275-\$550/hour to be reasonable); *Goglin v. BMW of North America, LLC* (2016), 4 Cal. App. 5th 462, 473-74 (finding a rate of \$575 reasonable where BMW argued the case was not complex and provided evidence that counsel for BMW charged much lower hourly rates); *Shaw v. Ford Motor Co.*, (C.D. Cal. Jan. 3, 2020), No. 5:18cv1169 JLS (KK), 2020 U.S. Dist. LEXIS 2320, 2020 WL 57273, at *3 (approving rates between \$200 and \$550); *Canani v. Ford Motor Co.*, No. 2:21-CV-03346-SB-JC, 2022 U.S. Dist. LEXIS 106409, 2022 WL 2102893,

at *3 (C.D. Cal. Feb. 14, 2022) (approving rates of \$490 per hour for partner and \$425 and \$435 per hour for associates); *Odadjian v. Jaguar Land Rover N. Am., LLC* (C.D. Cal. Aug. 18, 2022, No. 2:21-cv-09333-SB-GJS) 2022 U.S. Dist. LEXIS 215767, at *5, finding that “a rate of no more than \$500 is reasonable for an attorney with,” 15 years of experience.)

Although quite a few of Plaintiff’s attorneys have significant years of experience, their proposed rates are quite high for going lemon law cases, especially in San Bernardino County. Given the rate ranges reflected in the cases referenced above, the Court reduces the proposed attorneys’ rates as follow:

<i>Name</i>	<i>Position</i>	<i>Year of Bar Admission</i>	<i>2025/2026 Hourly Rate</i>	<i>Reduced Rate</i>	<i>Hours Worked</i>	<i>Award Reduction</i>
Sepehr Daghighian	<i>Partner</i>	2005	\$625	\$525	12.6	\$1260
Michael H. Rosenstein	<i>Partner</i>	1993	\$700	\$575	2.5	\$312.50
Brian T. Shippen-Murray	<i>Senior Associate</i>	2012	\$550	\$450	2.6	\$260
Alastair Frederick Hamblin	<i>Attorney</i>	2012	\$550	\$450	5.8	\$580
Miguel A. Ortiz	<i>Associate</i>	2017	\$525	\$425	0.8	\$80

ii. Plaintiff’s Counsels’ Charged Hours are Mostly Reasonable.

In addition to contesting the billing rates, Defendant opposes certain charges as being excessive and unreasonable.

“In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged.” (*Premier Medical*

Management Systems, Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 564; see also *Gorman v. Tassajara Dev. Corp.*, (2009) 178 Cal. App. 4th 44, 101 (“The party opposing the fee award can be expected to identify the particular charges it considers objectionable”).)

Defendant argues that many entries are related to the same task, making them both duplicative and then, cumulatively excessive. A review of the invoice submitted by Plaintiff reveals most of counsel’s charges to be reasonable and related to this case. The only exception appears to be Plaintiff’s fees anticipated for the reply and upcoming hearing. Counsel seeks 7.5 hours related to reviewing the opposition, drafting the reply, and attending the upcoming hearing. This is excessive, and the Court awards 1 hour related to the upcoming hearing, and 2.5 hours related to the review of opposition and reply. Such a modification results in a reduction of \$2,100, calculated at the reduced rate set forth above.

b. Plaintiff is Not Entitled to a Lodestar Multiplier.

Plaintiff seeks a 1.5 multiplier based on the risk of taking this case on a contingency fee basis, the delay in payment, and the successful settlement. (Mot. at 10-12.)

“A trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1139.) Although Plaintiffs’ counsel apparently obtained a substantial recovery on behalf of their client, it is not clear the quality of representation “far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at” the rates requested. (*Ketchum v. Moses*, *supra*, 24 Cal.4th 1122, 1139.) Further, Defendant argues that the offer Plaintiff accepted is the same offer submitted to it at the beginning of this litigation. (Opp. at 1-2.)

Further, based on a review of recent case law, multipliers seem to be disfavored in Song-Beverly actions. (See, e.g., *James Holcomb & Rotoco, Inc. v. BMW of N. Am., LLC* (S.D. Cal. Feb. 14, 2020, No. 18cv475 JM (BGS)) 2020 U.S. Dist. LEXIS 26094, at *25 (denying request

for a 0.3 multiplier, stating it was counsel's "own choice to take this case on a contingency basis" and should not be the basis for a multiplier); *Chavez, supra*, 2020 U.S. Dist. LEXIS 12187 (rejecting 0.3 multiplier based on the posture and lack of complexity of case); *Hamm, supra*, 2019 U.S. Dist. LEXIS 141480 (rejecting 0.5 multiplier because the case did not involve complexity or novel or difficult questions of law or fact); *Petropoulos, supra*, 2019 U.S. Dist. LEXIS 89984 ("Plaintiffs were not litigating important constitutional rights here. Nor were they representing the public interest. . . . They were seeking compensation and statutory penalties for a defective Durango.").)

Indeed, although Plaintiff points to instances in which a multiplier has been awarded, Plaintiff also attaches as exhibits court opinions and fee orders where multipliers were not awarded to counsel. (S. Daghighian Decl., Ex. D-E, G-K.) Given the lack of complexity of this case, the Court rejects Plaintiff's request for a multiplier.

c. Plaintiffs' Costs.

Defendant seeks to strike certain fees but does not put forward any specific argument.

In *Jensen v. BMW of North America, Inc.*, the Court of Appeal, Third District held that the use of the word "expenses," in Section 1794, subdivision (d), permits the recovery of items not included in the detailed statutory definition of "costs," and is not limited by Code of Civil Procedure section 1033.5. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138.)

Although Plaintiff's counsel has not attached invoices of the costs and expenses claimed, his invoice, attached as part of Exhibit A of Mr. Daghighian's declaration, does provide sufficient information to be able to understand the charges being sought for reimbursement. Given the broad ability to recover costs and expenses under Song-Beverly, the Court awards reimbursement for most of the costs associated with this current litigation, except for those enumerated below. Independent review of the submitted costs indicates that they are reasonable, except for the ones identified below because the ones below are not associated with any court filings on that date. Therefore, the Court strikes the following costs:

- Expense 09/11/2025 Attorney Service Fees: Rapid Legal Invoice# 12810650 = \$171.75

- Expense 09/17/2025 Attorney Service Fees: Advanced Attorney Services =
\$145.90
- Expense 01/14/2026 Attorney Service Fees: Rapid Legal Invoice#13649279 =
\$16.50

Removing these charges would result in a reduction of \$334.15.

RULING

Based on the aforementioned analysis, the Court GRANTS Plaintiff's Motion in part, awarding a total of \$10,902.38 in attorneys' fees and costs, based on an award of:

- i. \$10,072.50 in attorneys' fees (reduced from \$14,665.00);
- ii. \$829.88 in costs (reduced from \$1,164.03); and
- iii. A denial of the requested multiplier.